

Action Pack

Who to take this to — and an ICO complaint skeleton

*Practical next steps. Contacts are real organisations working this exact area; verify current details and intake routes before sending, and note every org chooses its own cases. Not legal advice.***

PART 1 — Who to go to (in priority order)

Tier 1 — built for exactly this

1. **Foxglove** — foxglove.org.uk — UK legal non-profit that *litigates* government data/tech. Track record: NHS Data Store / Palantir, DWP algorithm challenges, care.data-style fights. **Your #1**. Send the master report + the GDPR Legal Exposure doc. Angle: **NHS↔justice linkage, function creep, missing DPIA**.
2. **noyb (None of Your Business)** — noyb.eu — Max Schrems' NGO; files strategic GDPR complaints professionally across the EU. **Best for any EU deployment** (European Medicines Agency, Germany/Destatis). This is literally their operating model.
3. **AWO** — awo.agency — boutique **data-rights law firm** (if you want a solicitor directly rather than an NGO). They litigate/advise on GDPR and act for journalists and NGOs.

Tier 2 — campaigners & specialists

1. **medConfidential** — medconfidential.org — NHS/health-data-linkage specialists. Perfect for the **NHS England Person_ID / NHS↔justice** angle.
2. **Open Rights Group** — openrightsgroup.org — UK digital rights; campaigns + some legal.
3. **Big Brother Watch** — bigbrotherwatch.org.uk — surveillance campaigns; very media-effective.
4. **Privacy International** — privacyinternational.org — strategic litigation, international; they wrote the Aadhaar analysis.

Tier 3 — international / specific verticals

1. **EDRi (European Digital Rights)** — edri.org — EU-wide umbrella; good for the cross-EU framing.
2. **Internet Freedom Foundation** — internetfreedom.in — India / Aadhaar.

Journalists

- **The Bureau of Investigative Journalism** — non-profit, built for this.
- **The Guardian** data/tech desk; **Computer Weekly** (broke major NHS-data stories).

The regulator

- **ICO** — ico.org.uk — for the formal complaint (Part 2). EU equivalents: the relevant national DPA, or the **EDPS** for EU bodies like the EMA.

How to approach each (the pitch)

Two short paragraphs. Real name. Report + GDPR doc attached. Sober:

"I've compiled a public-interest analysis, entirely from published documents, of cross-domain citizen record linkage and its data-protection exposure. I believe there's a credible transparency / purpose-limitation / special-category-data issue with [specific deployment]. The report and a GDPR exposure note are attached. Would this be of interest?" No "leak," no "war." Offer them the work; let them carry it.

PART 2 — ICO complaint skeleton (for a solicitor to sharpen)

Complainant: [your name / contact] — **Date:** []

Controller complained of: [the specific body — e.g. NHS England / ONS / Ministry of Justice]

Processing complained of: [the specific deployment — e.g. cross-domain linkage of NHS patient records with justice/administrative data via Person_ID, as described in the controller's own published material]

Grounds (plead narrowly — do NOT plead "no consent / no opt-out" as the lead): 1. **Art 5(1)(a) — fairness & transparency.** Data subjects are not informed their records are linked across domains; the processing is not transparent. 2. **Art 5(1)(b) — purpose limitation.** Data obtained/linked for statistical purposes is used for operational identification of individuals (beyond the Art 89 statistics cover), without a separate valid basis. 3. **Art 9 & Art 10 — special-category & criminal data.** Linking health data with justice/criminal data engages heightened conditions; the complaint asks the ICO to verify each is satisfied for every linkage. 4. **Art 35 — DPIA.** Request disclosure of the Data Protection Impact Assessment(s); assess whether one exists, is adequate, and addressed these risks (and whether prior consultation under Art 36 was needed). 5. **Proportionality** (Art 5(1)(c) minimisation + Charter/ECHR Art 8): population-scale, indefinite, cross-domain linkage may exceed what is necessary and proportionate.

What I ask the ICO to do: - Investigate the above; **require the controller to produce the DPIA**; assess the lawful basis for the special-category/criminal-data linkage; assess transparency compliance; and consider enforcement.

Evidence relied on: the controller's own published transparency records / methodology pages, plus the attached report (all public-source).

Note: *Not legal advice. A data-protection solicitor should settle the grounds and check every article against current UK GDPR text and ICO guidance before filing. FOI / subject-access requests can surface whether a DPIA exists and is adequate — do that first.*

The sequence

1. **FOI the DPIA** for the chosen deployment (cheap, fast, surfaces Door 4).
2. **Send the two-paragraph pitch to Foxglove and/or AWO** with the report + GDPR doc.
3. If they bite, **let them lead**. If you go direct, **file the narrow ICO complaint** above.
4. **In parallel**, offer the story to one journalist (BIJ / Guardian) — public pressure + legal pressure together is what actually moves a regulator.
5. **Stay surgical and stay open** — one deployment, named grounds, real name, public-source. That's the version that wins.